

STATE OF NEW YORK

6553--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 6, 2025

Introduced by M. of A. RAJKUMAR -- read once and referred to the Committee on Correction -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the administrative code of the city of New York, the social services law and the executive law, in relation to providing comprehensive services to individuals with a persistent pattern of involvement in the criminal justice system; and providing for the repeal of such provisions upon the expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as "the 9,000
2 act".

3 § 2. The administrative code of the city of New York is amended by
4 adding a new section 9-313 to read as follows:

5 § 9-313 Comprehensive services to prevent recidivism. 1. The office
6 shall identify no more than ninety-five hundred individuals with a
7 persistent pattern of arrest and failure to appear in court and, in
8 conjunction with: the office for neighborhood safety and the prevention
9 of gun violence, the department of health and mental hygiene, the
10 department of social services, the department of homeless services, the
11 department of education, the state division of criminal justice
12 services, the state office of temporary and disability assistance, the
13 state office of children and family services, the state department of
14 education, the state office of mental health, and the state office of
15 addiction services and supports, engage with as many of such identified
16 individuals as possible to provide comprehensive services including, but
17 not limited to, education, vocational training, housing, financial
18 support, healthcare, and mental healthcare. No provision of services
19 under this program shall be contingent on a criminal background check of
20 such individuals.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 2. Any individual identified by the office who stands charged with a
2 violation or a misdemeanor may be offered a plea in satisfaction of such
3 charges if such individual agrees to and participates in the comprehen-
4 sive services program under this section.

5 3. An incarcerated individual who is identified under this section and
6 who is eligible for presumptive release, parole, conditional release or
7 release to post-release supervision prior to the expiration of their
8 full term of imprisonment or maximum term for parole may be entitled to
9 such relief on the condition of participation in the program under this
10 section; provided, however, that the department of corrections and
11 community supervision may exercise discretion in allowing the release of
12 persons convicted of the following offenses: (a) a violent felony
13 offense as defined in section 70.02 of the penal law; (b) murder in the
14 first degree or murder in the second degree; (c) an offense defined in
15 article one hundred thirty of the penal law; (d) unlawful imprisonment
16 in the first degree, kidnapping in the first degree, or kidnapping in
17 the second degree, in which the victim is less than seventeen years old
18 and the offender is not the parent of the victim; (e) an offense defined
19 in article two hundred thirty of the penal law involving the prostitu-
20 tion of a person less than nineteen years old; (f) disseminating inde-
21 cent material to minors in the first degree or disseminating indecent
22 material to minors in the second degree; (g) an offense defined in arti-
23 cle two hundred sixty-three of the penal law; or (h) a hate crime as
24 defined in section 485.05 of the penal law.

25 4. Every five years, the office shall issue a report on outcomes of
26 program participants with respect to re-arrests, health, housing securi-
27 ty, and educational outcomes, including the association between each
28 service and the probability of re-arrest.

29 § 3. Paragraph (a) of subdivision 8 of section 131-a of the social
30 services law is amended by adding a new subparagraph (xiv) to read as
31 follows:

32 (xiv) all of the income of a dependent child or dependent adult living
33 with a parent or other caretaker relative, which is derived from partic-
34 ipation in a vocational training or other employment program in
35 connection with services provided through a recidivism prevention
36 program under section 9-313 of the administrative code of the city of
37 New York.

38 § 4. The executive law is amended by adding a new section 259-u to
39 read as follows:

40 § 259-u. Parole eligibility for certain incarcerated individuals iden-
41 tified by the New York city office of criminal justice. Any incarcerated
42 individual eligible for discharge of sentence pursuant to this article
43 shall be entitled to and shall receive an absolute discharge from
44 presumptive release, parole, conditional release or release to a period
45 of post-release supervision on condition of participation in the program
46 provided for by section 9-313 of the administrative code of the city of
47 New York.

48 § 5. This act shall take effect immediately and shall expire and be
49 deemed repealed ten years after it shall have become a law.